

09:00 AM

24-CIV-00311 A.V. VS. SAN BRUNO PARK SCHOOL DISTRICT, ET AL.
LINE 2

A.V.
JEREMY YEH

KHALDOUN A. BAGHDADI
CHARLES R. ROE

CASE MANAGEMENT AND TRIAL SETTING CONFERENCE (Joined with the vacated
Motion for Trial Preference)

TENTATIVE RULING:

All counsel to appear to set Trial and related dates, Zoom is allowed, using the Courtroom L
Zoom credentials.

09:00 AM

24-CIV-05635 MONICA D COOPER VS. THANH K. CHUNG, ET AL.
LINE 3

MONICA D. COOPER
THANH K. CHUNG

ERIC L. TOSCANO
MATTHEW G. SALAZAR

DEFENDANT BELONG HOME, INC.'S MOTION FOR SUMMARY ADJUDICATION OF
DEFENDANT THANH K. CHUNG'S CONTRACTUAL DUTY TO DEFEND AND
INDEMNIFY DEFENDANT BELONG HOME, INC.

TENTATIVE RULING:

Defendant Belong Home, Inc.'s motion for summary adjudication of Defendant Thanh K. Chung's contractual duty to defend and indemnify Defendant Belong Home is GRANTED in-part and DENIED in-part. (Code Civ. Proc. §437c, subd. (f)(1).)

The underlying action asserts various causes of action relating to Plaintiff Monica Cooper's residential tenancy at a rental property owned by Defendant Chung and managed by Defendant Belong Home, Inc. These defendants entered into an agreement regarding the management of the rental property. In pertinent part, the section entitled "Owner's Responsibilities" states [Defendant Chung] shall

(b) Indemnify, defend and hold harmless Belong and its employees and agents, as permitted by law, from all costs, expenses, suits, liabilities, damages, attorney fees **and claims of every type**, including, but not limited to, those arising out of injury or death of any person, or damage to any real or personal property of any person, including Owner, (i) for any repairs performed by Owner or by others hired directly by Owner; (ii) **for those acts relating to the management, leasing, rental, security deposits, or operation of the Property by Belong, or its employees or agents, or the performance or exercise of any of the duties, powers or authorities granted to Belong**; or (iii) from any incorrect or incomplete information supplied by Owner, or from any material facts that Owner knows but fails to disclose including dangerous or hidden conditions on the Property. This paragraph shall survive any termination of this Agreement.

(Declaration of Matthew G. Salazar, Exh. 3&4, ¶4(b), emphasis added.)

Belong Home brings the instant motion pursuant to Code of Civil Procedure section 437c, subdivision (f)(1) on the grounds that the written Home Management Agreements executed between Belong and Chung include express contractual provisions whereby Chung agreed to defend, indemnify and hold harmless Belong and its employees from all costs, expenses, suits,
